

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made under
Section 331(1) of the Code of Criminal
Procedure Act No.15 of 1979 read with
Article 138 of the Constitution of the
Democratic Socialist Republic of Sri
Lanka.

**Court of Appeal Case No.
CA/HCC/0117-118/2023
High Court of Balapitiya
Case No. Cri/1131/2008**

Democratic Socialist Republic of Sri
Lanka

COMPLAINANT

Vs.

1. Thuiah Handi Manoj Hasintha
2. Sangama Chanaka Jayawardena

ACCUSED

AND NOW BETWEEN

1. Thuiah Handi Manoj Hasintha
2. Sangama Chanaka Jayawardena

ACCUSED-APPELLANTS

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

BEFORE : **P. Kumararatnam, J.**
R. P. Hettiarachchi, J.

COUNSEL : **Harshana Ananda for the Appellant.**
Dishna Warnakula, DSG for the
Respondent.

ARGUED ON : **23/02/2026**

DECIDED ON : **02/07/2026**

JUDGMENT

P. Kumararatnam. J,

The above-named Accused-Appellants (hereinafter referred to as the Appellants) were indicted for committing the murder of Dadumathumullagamage Lishan Maduranga on 23.09.2005 which is an offence punishable under Section 296 of the Penal Code.

After a non-jury trial, the Learned High Court Judge has found the Appellants guilty of the charge and sentenced them to death on 03/03/2023. The prosecution had called seven witnesses and marked productions at the trial. As the Appellants were tried in absentia the defence called three witnesses on behalf of them and closed their case.

Being aggrieved by the aforesaid conviction and sentence, the Appellants preferred this appeal to this court.

At the hearing of this appeal, only the 2nd Appellant was represented by a Counsel. The appeal of the 1st Appellant was not argued.

History of the case

When this case was called on 18.11.2008 for service of indictment, only the 1st Appellant was present and indictment was only served to him and the plea was recorded. The Appellant pleaded not guilty to the charge and elected a non-jury trial.

While the prosecution was preparing to lead evidence under Section 241(1) of the Criminal Procedure Act No.15 of 1979 (Hereinafter referred to as the

CPC) in respect of the 2nd Appellant, the 1st Appellant also absconded court. Hence, court ordered the prosecution to take steps under Section 241(1) of the CPC.

On 24.04.2013 the 2nd Appellant was produced to court and was remanded by the Learned High Court Judge. 241(1) inquiry was held in respect of the 1st Appellant and the case was fixed in absentia of him. On 01.03.2016, the Learned High Court Judge had commenced the trial stating that the indictments had been served on the Appellants and explained the right of a jury trial. The relevant portion of the proceeding is re-produced below:

Page 197 of the brief.

වුද්දනයිත් හට අධිචෝදනා කියවා දී, අධිචෝදනා පත්‍ර භාර දී ඇති අතර, පූර් සභාවක් ඉදිරියේ විභාගයට ගැනීමට ඇති අයිතිය ද පහදා දී ඇත.

ඒ අනුව නඩුව විභාගයට නියමිත ව ඇත.

The Appellants had been properly represented by their Counsel during the trial, even though the trial proceeded against them in absentia. At the hearing of this appeal, the 1st Appellant was not represented by a Counsel. Only the Counsel for the 2nd Appellant argued the matter confining his argument only in respect of the 2nd Appellant. No argument was placed on behalf of the 1st Appellant.

An appellate court cannot merely dismiss a criminal appeal in situations where there is lack of prosecution or where the appellant fails to pursue it. Considering the liberty and legal rights that are at stake, the Court would legally be required assess the trial court's record and decide the case based on its merits. As such, it cannot merely be dismissed based on the absence or inactivity of the appellant.

Therefore, this Court has a bounden duty to consider the 1st Appellant's case. Hence, I will consider the Appeal of the 1st Appellant first.

The 1st Appellant had preferred the following grounds of Appeal in the Petition of Appeal. The grounds are re-produced below:

1. The judgment of the Learned High Court Judge is illegal and contrary to the law.
2. The contradictions and omissions marked in the prosecution case were not taken into consideration when analysing the evidence.
3. The Learned High Court Judge has failed to properly analyse the defence evidence.
4. Due consideration was not given to the fact that the prosecution has failed to prove their case beyond a reasonable doubt.
5. The evidence tendered throughout the case was not analysed by the Learned High Court Judge with a judicial mind.
6. The evidence tendered in favour of the defence has been ignored by the Learned High Court Judge in arriving at his judgment.
7. The judgement of the Learned High Court Judge has failed to give due consideration to the fact that the indictment was not served to the 2nd accused at the beginning of the trial.
8. Even though the Learned High Court Judge had accepted the fact that he has not satisfied with how the trial has been conducted, he has ignored that fact and given his judgement.
9. The prosecution has failed to call any investigation officer or police officer as a witness to their case and the Learned High Court Judge has failed to go through the contradictions marked in the testimony of the only police officer called by the prosecution, with a judicial mind.
10. Due weightage was not given to the defence of *alibi* taken by the Accused-Appellants from the beginning of the trial, when analysing the defence evidence.
11. When there were certain defects identified in the post mortem report and the defence witness No. 3 has been able to create a reasonable doubt in the testimony of PW7, the Learned High Court Judge has failed to analyse those facts with a judicial mind.

The 2nd Appellant has raised the following grounds of appeal in support his argument:

1. The Learned High Court Judge erred in law by failing to appreciate that fact that the indictment not being read over and jury option was not given to the 2nd Appellant have caused a grave miscarriage of justice in respect of the 2nd Appellant.
2. 2nd Appellant has not been afforded a fair trial.
3. Learned High Court Judge erred in law holding that the prosecution has proved the case beyond reasonable doubt.
4. The Learned High Court judge has unreasonably rejected the contradictions marked by the defence.

Background of the Case

According to PW1 Amarasiri, the father of the deceased, the deceased had gone to the 'Paraliya' play ground to play cricket. About half an hour after his departure, he had received a phone call from PW2, saying that his son had been shot and he had rushed to the playground. He had lodged the first complaint with the Meetiyagoda Police Station.

PW4 Maduranga had seen the incident when walking towards the "Paraliya" ground from the Paraliya junction. The Appellants had arrived at the scene in a bicycle ridden by the 1st Appellant. The 2nd Appellant who was sitting on the front bar, had alighted from the bicycle, and had gone up to the deceased who was fielding near the boundary line. He had opened fire twice and threatened the others not to give evidence, and both Appellants had ridden the bicycle away from the scene.

PW2, Manohara, too said that while playing cricket, the 2nd Appellant had come with the 1st Appellant and had shot the deceased to death.

According to PW7 the JMO had observed four injuries on the deceased's body. The fatal injury was observed on the left side of the head. The 3rd injury was on the left upper arm and the 2nd injury was the corresponding exit

wound of 3rd. The cause of death was severe brain injuries due to discharge of a firearm (Lacerated left cerebellar lobe and left temporal of the brain).

PW10, PS 29245 Livera gave evidence with regard to the investigation.

As the Learned High Court called the defence, the Appellants called three witnesses. The first two witnesses, including DW01 Sumathirathne, testified that the Appellants were engaged in roofing the house of the 1st Appellant.

Defence witness Professor Perera (DW04) testified that the fact that no burning, blackening, or tattooing around the wounds indicate that the shots may have been fired at a distance of about 04-05 feet. Further, he opined that there could be tears on the upper cloth if the deceased had worn anything at the time of shooting.

As the Appeal grounds raised on behalf of the 1st Appellant are interconnected, all grounds will be considered together hereinafter.

PW2 and PW4 are eye witnesses to the incident. They had witnessed the incident while they were playing cricket along with the deceased. Both had very clearly seen the incident and identified the Appellants perfectly.

In a criminal case, two eyewitnesses being available would greatly strengthen the prosecution's case, which can be done through the corroboration of timelines and identification of suspects. In such cases, judges and juries would be compelled by such direct eyewitness testimony. As such, two witnesses that agree on the same details would usually secure higher conviction judgments, as opposed to cases with merely one single witness.

In the case of **Kumara de Silva & Others V Attorney General** (2010) 2 Sri L.R. 169, it was held that;

"Credibility is a question of fact, not of law. Appeal Court Judges repeatedly stress the importance of the trial judge's observations of the demeanour of witnesses in deciding questions of fact. The acceptance or rejection of evidence of witnesses is therefore a question of fact for the trial

Judge, since he or she is in the best position to hear and observe witnesses. In such a situation the Appellate courts will be slow to interfere with the findings of the trial Judge unless such evidence could be shown to be totally inconsistent or perverse and lacking credibility."

In **Ariyadasa v Attorney-General**, (2012) 1 Sri. L.R. 84], Sisira de Abrew, J held:

"Court of Appeal will not lightly disturb a finding of a trial Judge with regard to the acceptance or rejection of a testimony of a witness, unless it is manifestly wrong, when the trial judge has taken such a decision after observing the demeanour and the deportment of a witness. This is because the trial Judge has the priceless advantage to observe the demeanour and deportment of the witness which the Court of Appeal does not have."

This position was analysed in the case of **Veerasamy Sivathasan v. Honourable Attorney General** [2021] 2 SLR 290 (SC Appeal 208/2012) as follows:

"One key reason for the afore-stated approach is that the trial court has the invaluable advantage of observing the demeanour and deportment of witnesses who testify at the trial, and using such observations for the purpose of assessing and determining the credibility of witnesses. Furthermore, the gradual and incremental unfolding of human testimony and other evidence during the course of a trial, and the ability of the trial judge to question witnesses and obtain clarifications, place the trial judge in an advantageous position in appreciating the evidence and the respective positions of the prosecution and the defence. These advantages are not available to an appellate Court, which is called upon to determine the lawfulness of the finding of the trial Court, based on a consideration of the verbatim transcript of the trial proceedings together with the judgment

of the trial judge, aided by submissions of counsel and the reasons for the findings contained in the judgment.”

As per the evidence given by PW2 and PW4, it has clearly been established that the Appellants acted together to commit the murder of the deceased by shooting. In order to establish common intention, it is necessary to prove a shared meeting of minds, where mere accidental presence or independent actions would not suffice. Courts would infer this by considering the circumstantial and direct evidence available.

In this case the witnesses clearly outlined how the Appellants arrived at the scene of crime with coordination and possession of a coordinated weapon. After shooting the deceased, it is evident that the Appellants had left the place after threatening not to give evidence to the people who were there at that time. This clearly shows their participatory presence.

In **SC Appeal 130/2014** dated 14.09.2022 Kodagoda, J. held that:

Therefore, it needs to be recognised that the principle of ‘common intention’ is a means by which criminal liability is (a) shared between co-participants in the commission of the crime on the basis of their having shared a common intention, and committed certain actions in furtherance of such common intention, or (b) extended to a person who may not be the principal offender responsible directly for commission of the offence, on the basis of such other person having entertained a common intention together with the principal offender and such other person having acted in furtherance of the common intention with the principal offender. The same concept would apply to similar situations involving more than two persons.

In **Gunasiri and others v Republic** [2009] 1 SLR 39 it was held that:

“To establish the existence of common intention it is not essential to prove that the criminal act was done pursuant to a pre-arranged plan.

A common intention can come into existence without a prearrangement. It can be formed on the spur of the movement.”

In the case of **The Queen v Vincent Fernando and two others** (1963) 65 NLR 265, (at p. 272) it was held that:

“a person who merely shares the criminal intention or takes a fiendish delight in what is happening but does no criminal act in furtherance of the common intention of all is not liable for the acts of the others. To be liable under section 32 a mental sharing of the common intention is not sufficient, the sharing must be evidenced by a criminal act.

... where a series of criminal acts is done by several persons, each act would be done either jointly or severally. But whether the criminal acts in the series of criminal acts are done jointly or severally if each criminal act is done in furtherance of the common intention of all each of the persons sharing the common intention and doing any act in the series of criminal acts is not only liable for his own act but is also liable for the acts of the others in the same manner as if it were done by him alone.”

The Learned High Court Judge had very correctly analysed the evidence presented by the prosecution and held that this is a premeditated murder considering the participation of the Appellants in committing the murder of the deceased.

The defence witnesses are the uncle and the mother of the 1st Appellant and the Learned High Court Judge had considered their evidence and given reasons as to why he disregarded their evidence.

In this case, the Appellant was properly arraigned, the indictment was read out and jury option was given to him. He had chosen that his case be tried before a judge. He was properly represented unto filing his Petition of Appeal. Hence, no prejudice has been caused to him even though he was tried in absentia due to his continuous absence in Court.

In this case, PW2 and PW4 had clearly witnessed the incident and described how the murder was committed by the Appellants. They had given cogent and convincing evidence.

Considering the evidence given by PW2 and PW4, and other witnesses, finding the Appellants guilty of the charge has not caused any prejudice to the Appellants. Therefore, I affirm the conviction in respect of the 1st Appellant and dismiss his appeal.

In respect of the second Appellant the Learned Counsel strenuously contended that his client was deprived of a fair trial. His argument was that the 2nd Appellant was not properly arraigned in this case. The charge was not read to him and jury option was not given. The Learned High Court Judge too admitted but he failed to take preventive measures before he could pronounce the judgment. Instead, he had commented in his judgement. The relevant portion is re-produced below:

Page 522 of the brief.

2016.03.01 වන දින මෙම නඩුවේ නඩු විභාගය ආරම්භ වී ඇති අතර, මෙම නඩුවේ නඩු විභාගය මහාධිකරණ විනිසුරු නාමල් බණ්ඩාර බළල්ලේ මැතිතුමා ඉදිරිපිට දී ආරම්භ වී ඇති අතර, ඒ අනුව පළමු වූදින නොමැතිව ද දෙවන වූදින ඉදිරිපිට දී ද, නඩු විභාගය ආරම්භ වී ඇත. එම නඩු විභාගයට ආරම්භ කරන අවස්ථාවේ දී පහත සඳහන් සටහන 2016.03.01 වන දින තබා ඇත. “වූදිනයිත් හට අධිචෝදනා කියවා දී අධිචෝදනා පත්‍ර භාර දී ඇති අතර, ජූරි සභාවක් ඉදිරියේ විභාගයට ගැනීමට ඇති අයිතිය ද පහදා දී ඇත.” කෙසේ වුවද මෙම නඩු වාර්තාව පරීක්ෂා කිරීමේ දී මෙම නඩුවේ දෙවෙනි වූදිනට කිසිදු අවස්ථාවක අධිචෝදනා භාර දී නොමැති බවත්, එසේම දෙවන වූදිනට ජූරි සභාවක් සහිතව හෝ රහිතව තම නඩු විභාගය පැවැත්වීමට ඇති අයිතිවාසිකම පැහැදිලි කර දී නොමැති බවත්, එසේම දෙවෙනි වූදිනට අධිචෝදනා පත්‍රයේ ඇති අධිචෝදනාව කියවා තේරුම් කර දී නොමැති බවත් පෙනී යයි.

As correctly argued, the Learned High Court Judge has tried to justify this lapse on the basis that the second Appellant was represented by a Counsel

In criminal trials, a charge refers to the formal, written accusation by the government stating that the individual has committed a specific crime. A charge would serve as the foundation of the legal proceedings that follow, and therefore would serve as the blueprint which determines factors such as the relevance of evidence, what must be proven by the prosecution and the defendant's rights.

As such, if a criminal trial is concluded with a judgment being delivered, where the accused was never read or explained the charges, such a judgment or conviction would be invalid. The rationale for this is that failure to formally read the charges would violate fundamental legal rights and lead to a miscarriage of justice.

In Sri Lanka's criminal courts, trial by jury is an option which is primarily available for the most serious crimes heard in the High Court. As per the Judicature Act, an accused would have the right to elect whether to be tried by a jury or by a judge sitting alone.

In **Attorney General v Segulebbe Latheef and Another** [2008] 1 SLR 225 the Supreme Court held that:

"As long as it is in the statute book that the accused can elect to be tried by a jury, the trial judge has an obligation not only to inquire from him whether he is to be tried by a jury, judge must also inform that the accused has a legal right to that effect. Non observance of this procedure is an illegality and not a mere irregularity".

In **Jayasooriya and others v AG** [2009] 1 SLR 101 the Court held that:

"To ensure a fair trial, the legislature in its wisdom from time to time has promulgated several fundamental concepts and statutory duties into our criminal law, the offering of the jury option is one such concept".

Appellate courts would therefore consider such omissions to be fatal procedural defects rather than merely minor technicalities. Therefore, the

entire trial process may be declared void. In situations where the charge has not been properly read and the process has not been followed; the Appellate Court has the power to order a fresh trial.

Guided by the judgements mentioned above, I conclude that this is an appropriate case to send for re-trial in respect of the 2nd Appellant. Therefore, his appeal allowed.

The Registrar of this Court is directed to send this judgment to High Court of Balapitiya along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL